



HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 12303 of 2026

M/S Om Food Manufacturing Center

.....Petitioner(s)

Versus

State Of U.P. And 2 Others

.....Respondent(s)

Counsel for Petitioner(s)	:	Kumar Ankit Srivastava
Counsel for Respondent(s)	:	C.S.C., Udit Chandra

Court No. - 29

**HON'BLE ARINDAM SINHA, J.
HON'BLE SATYA VEER SINGH, J.**

1. Mr. Kumar Ankit Srivastava, learned advocate appears on behalf of petitioner and submits, his client enjoys commercial connection. His client applied for enhancement of load, increased to 140 KV on 14th July, 2023. Subsequent to the increase his client regularly paid consumption charges bills. After lapse of two years the supply company issued notice that there was mistake in connection and made demand of in excess of Rs. 54 lacs. He submits, increase of load and installation of meter were not in hands of his client. There is no allegation of theft but of mistake made by the supply company, for which his client is being penalized on threat of disconnection. He seeks interference.

2. Mr. Shubhranshu Shekhar, learned advocate, Additional Chief Standing Counsel appears for State. Mr. Udit Chandra, learned advocate appears on behalf respondent nos. 2 and 3 (the supply company). He submits, a bill dispute is to be raised under clause 6.5 in U.P. Electricity Supply Code, 2005. The writ petition is not maintainable.

3. We see that the supply company is raising a dispute in respect of bills already paid and due discharge obtain by petitioner. Dispute because the supply company says that there was omission and incorrect bills were raised. On query Mr. Chandra

seeks adjournment to demonstrate applicable provision, whereunder the supply company can raise demand on incorrect bills.

4. Adjournment is granted. The demand will remain stayed till next date of hearing.

5. List on 6th May, 2026 as fresh.

April 23, 2026
Vikram

(Arindam Sinha,J.)

(Satya Veer Singh,J.)